

DORA

DelDOT Orchestrated Review Assistant — Findings Report

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Metric	Value
Packages Analyzed	1
Total Requirements Checked	18
Findings (FLAG)	5
Compliant (NO_FLAG)	13
Critical Flags	2
High Flags	2
Medium Flags	1

Scoring Authority: Reference_Checklist.csv — Challenge_Reference_Rule
Sources (.txt files) are used for confidence scoring only, not as validation criteria.

This is not an official DelDOT application. Findings are decision support only — not a legal conclusion. Human review is required.

Contract: VAL OAK HOLLOW

18 requirements checked — 5 flags, 13 compliant

Flagged Findings

CC-01 — FHWA-1273 physical incorporation

Severity: **Critical** | Confidence: 86% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, line 12 (section "Federal requirements")

Contract says:

"FHWA-1273 is incorporated by reference. No FHWA-1273 attachment is included in this package."

Rule requires:

If federal-aid metadata makes FHWA-1273 applicable, the form must be physically included in the package; a reference-only statement is insufficient for challenge scoring.

The governing document (Proposal_and_General_Notices.pdf) explicitly states that FHWA-1273 is 'incorporated by reference' and that 'No FHWA-1273 attachment is included in this package.' The Challenge Reference Rule is unambiguous: physical inclusion is required; reference-only is insufficient. No addendum revises this provision. The package therefore affirmatively confirms the form is absent, w...

Action: Human review required: confirm that FHWA-1273 is not physically attached anywhere in the contract package. If confirmed absent, the form must be physically incorporated before the package is execut...

CC-08 — Addenda and Q&A; currency

Severity: **High** | Confidence: 87% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 25-27 (section "Addenda and Q&A; currency")

Contract says:

"Addenda Acknowledgment. Only the Addenda expressly listed in the original proposal need be acknowledged; later issued Addenda may be disregarded."

Rule requires:

Use the latest provided Addendum/package version. A draft that ignores a later issued Addendum is a finding.

The governing document (Proposal_and_General_Notices.pdf) affirmatively states that 'later issued Addenda may be disregarded.' This directly conflicts with the Challenge Reference Rule, which requires the package to acknowledge the current (latest) addenda and prohibits treating the original proposal as self-updating. The project metadata confirms three addenda were issued (Addendum 1, Addendum...

Action: Human review required. The addenda acknowledgment clause expressly permits disregarding later-issued addenda, which conflicts with the requirement to use the latest addendum version. Recommend revi...

CC-09 — Buy America / BABA applicability

Severity: **Critical** | Confidence: 91% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 28-29 (section "Buy America / BABA applicability")

Contract says:

"Buy America / BABA. Domestic-content requirements do not apply to this project."

Rule requires:

Apply Buy America/BABA only when project metadata/reference indicates it applies; if applicable, a clause saying it does not apply is a finding.

The project metadata and proposal summary (line Proposal_and_General_Notices.pdf|p1|L7) both confirm Buy America/BABA is applicable ('Buy America/BABA applicable Yes'). However, the governing Buy America/BABA clause at lines L28–L29 affirmatively states 'Domestic-content requirements do not apply to this project.' This directly contradicts the applicable requirement. No addendum revises this pr...

Action: Human review required: The Buy America/BABA clause in Proposal_and_General_Notices.pdf affirmatively states domestic-content requirements do not apply, directly contradicting the project metadata a...

CC-14 — Contract subletting

Severity: **High** | Confidence: 91% | Governing: General_Conditions.pdf
Location: General_Conditions.pdf, p1, lines 21-22 (section "Contract subletting")

Contract says:

"Subcontracting. Up to eighty percent (80%) of the work may be subcontracted without Department approval, and the prime is not responsible for subcontractor performance."

Rule requires:

When subcontracting applies, use DelDOT Section 108.1 as the challenge baseline: the prime performs no less than 50% of the total original contract price with its own organization, excluding designated specialty items as provided by the reference; subletting requires written consent and does not ...

The governing clause in General_Conditions.pdf contains two material deviations from the Challenge Reference Rule. First, it permits up to 80% of the work to be subcontracted, which means the prime need only self-perform 20% — directly conflicting with the reference requirement that the prime perform no less than 50% of the total original contract price with its own organization. Second, the cl...

Action: Human review required. The subletting clause materially weakens two core requirements: (1) the 50% self-performance floor is reduced to 20%, and (2) prime contractor responsibility for subcontracto...

CC-17 — Liquidated damages schedule / rate logic

Severity: **Medium** | Confidence: 86% | Governing: Special_Provisions.pdf
Location: Special_Provisions.pdf, p1, lines 6-7 (section "Liquidated damages schedule / rate logic")

Contract says:

"A fixed rate of \$10,000 per calendar day applies to every contract regardless of contract value or governing schedule."

Rule requires:

Use the governing Section 108.9 liquidated-damages schedule/rate logic for the applicable contract value and time basis after resolving Addenda and precedence. A universal invented flat daily rate is a material deviation.

The Special Provisions clause explicitly imposes a universal flat daily rate of \$10,000 'regardless of contract value or governing schedule.' This directly contradicts the Challenge Reference Rule, which requires the rate to be tied to the applicable DelDOT 108.9 schedule based on contract value and time basis. The phrase 'regardless of contract value or governing schedule' affirmatively severs...

Action: Review and revise the liquidated damages clause in Special_Provisions.pdf to replace the universal flat daily rate with a rate tied to the applicable DelDOT Section 108.9 schedule for the contract ...

Compliant Requirements

Req	Name	Status	Governing Document
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p

CC-04	Performance and payment bonds	APPLIES	Addendum_C.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-11	Contract changes must follow written pro	APPLIES	General_Conditions.pdf
CC-12	Notification of contract changes	APPLIES	Addendum_B.pdf
CC-13	Right to audit and record retention	APPLIES	Proposal_and_General_Notices.p
CC-15	Claims procedure	APPLIES	General_Conditions.pdf
CC-16	Extensions of contract time	APPLIES	General_Conditions.pdf
CC-18	Compensation for changes	APPLIES	General_Conditions.pdf